

This Mutual Arbitration Agreement is entered into among _____ (print employee name) (referred to as "Employee") and Zamp HR and _____ (the "Worksite Employer"). Zamp HR, the Worksite Employer and the Employee are referred to in this Agreement together as the "Parties", "we" or "us", or individually as a "Party".

1. **NO EMPLOYMENT AGREEMENT / EMPLOYMENT AT-WILL.** Neither this Agreement nor any other agreement between any of the parties is an employment agreement, and to the extent you are employed, it is at-will, you may be terminated with or without cause at any time, and without advance notice, procedure or formality, for any reason not otherwise prohibited by law.

2. **EMPLOYMENT IN RETURN FOR THIS AGREEMENT.** The Employee is either a new employee or is an existing employee of the Worksite Employer who is receiving new or additional benefits or other consideration, or is working under new policies as a result of the new relationship between the Worksite Employer and Zamp HR. The decision to employ the Employee and/or to offer the new benefits and policies was in return for the Employee's good faith agreement to comply with the spirit and terms of this Agreement.

3. **ARBITRATION.** To the maximum extent permitted by law, each party to this Agreement shall have the right to elect to arbitrate if Employee files a complaint, demand, or claim against Zamp HR or the Worksite Employer relating to Employee's employment by any party to this Agreement (a "Claim"). Any Party may elect to submit the Claim to binding arbitration in accordance with the procedures stated herein. If a Party makes an election to arbitrate, all parties named in the Claim shall be compelled to arbitrate the Claim as set forth herein.

Any Claim a Party elects to arbitrate must be brought by the complaining party within six (6) months of the event or act which gave rise to the dispute. Any Claim brought after six (6) months will be of no effect and void. In the event a dispute gives rise to damages, the parties specifically agree that no punitive damages will be sought or awarded. The arbitration shall be filed with the American Arbitration Association and the venue of such an arbitration proceeding shall be _____ (County of Worksite Employer) in the State of _____. The rules of the American Arbitration Association shall apply. The parties shall mutually agree on an arbitrator; however, if the parties are unable to agree on an arbitrator within thirty days after the election to arbitrate, then the complainant shall select one arbitrator and the respondents shall select one arbitrator, and the two selected arbitrators shall select a third arbitrator who will arbitrate the Claim. The prevailing Party, as determined by the arbitrator, will be awarded reasonable attorneys' fees, expert witness fees and costs, including arbitration fees, in addition to any relief order or award that enters for the prevailing Party.

THE EMPLOYEE UNDERSTANDS THAT THIS AGREEMENT TO ARBITRATE ALL ARBITRABLE DISPUTES MEANS THE EMPLOYEE IS AGREEING TO WAIVE, TO THE MAXIMUM EXTENT PERMITTED BY LAW, ANY RIGHT IT MAY HAVE TO ASK FOR A JURY OR COURT TRIAL IN ANY DISPUTE WITH THE COMPANY.

4. **ENTIRE AGREEMENT, ENFORCEABILITY; INTERPRETATION.** This Agreement expresses our entire understanding about its subject matter. The only way this Agreement may be amended, changed or waived will be through a written document that each party executes. This Agreement is enforceable by and against each of us and anyone else who has or who obtains rights under this Agreement from any Party. This Agreement will be interpreted and enforced under Utah law. Any unenforceable provision of this Agreement will be modified to the extent necessary to make it enforceable or, if that is not possible, will be severed from this Agreement, and the remainder of this Agreement will be enforced to the fullest extent possible.

Each Party has read and considered this Agreement carefully, believes that each Party understands each provision and has conferred or has had the opportunity to confer with the Party's own attorney before executing this Agreement.

IN WITNESS OF OUR AGREEMENTS, Zamp HR, the Worksite Employer, and the Employee have executed this Agreement on the date(s) indicated below.

The Employee	The Worksite Employer	Zamp HR
By: _____	By: _____	By: _____
Title: _____	Title: _____	Title: _____
Date: _____	Date: _____	Date: _____